
Journal

1994 SCMR 2142

Court

SUPREME COURT OF PAKISTAN

Date

1994-07-14

Appeal No.

CIVIL PETITION FOR LEAVE TO APPEAL NO. 161. OF 1994,

Judge

SAJJAD ALI, SHAH; G.J., FAZAL KARIM . ; AND MUHAMMAD MUNIR KHAN

Parties

BRIG. (RETD.) IMTIAZ AHMAD (PETITIONER) VERSUS ' ' ,{ GOVERNMENT OF PAKISTAN THROUGH SECRETARY, INTERIORDIVISION, ISLAMABAD AND 2 OTHERS RESPONDENTS ' ,

Lawyers

MUHAMMAD AKRAMSHEIKH^ADVOCATE.SUPREME: COURT INSTRUCTED; BY. IMTIAZ MUHAMMAD KHAN, ADVOCATE-ON-RECORD FOR PETITIONER. , IC-. : SHAHZAD JEHANGIR, SENIOR ADVOCATE, IFTIKHAR HUSSAIN CHAUDHRY, ADVOCATE INSTRUCTED BY RAJA, ABDUL GHAFOOR, ADVOCATE-ON-RECORD FOR ' RESPONDENT NO. 1. F.

Statutes

CONSTITUTION OF PAKISTAN 1973 - ARTICLE 199 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 154 CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199 (1) (A) (II) QANUN-E-SHAHADAT (10 OF 1984) - ARTICLE 129, ILLUS. (E) QANUN-E-SHAHADAT (10 OF 1984) - ARTICLE 161

Judgment

FAZAL KARIM, J!-This petition for leave /to appeal . under . Article 185(3)* of the Constitution comes from the judgmeh'f.of the Lahore.High Couh; Lahore ; (Khalil-ur-Rehman Khan and Tanvir Ahmed Khan, JJ.) dated : 13-4-1994 passed in.;an Intra-Court. Appeal uncler section .3 of Law Reforms Order, 1974 whereby the appeal of the petitioner Brig!! (Retd.) Imtiaz Ahmad, against the judgmeht Pf a learned Judge'jn Chambers (Zia Mahmood Mirza.J.as he then- was) dated 20-3-1994 Was dismissedr The learned Judge in Chambers had by that judgment dismissed the petitioner's application under Article 199 of ; the Constitution. 1 , . 2. The petitioner retired from the Army as a Brigadier. Hewas then employyed .on. contract as Director,;-Intelligence .Bureau, in* which "capacity he, served friam December, 1990 .to March, 1993. His case as laid in his application -under. Article 199 of the Constitution (Writ Petition) was that' v the leadership of the Pakistan People's Party were annoyed with him as; they thought that he had master-minded the formation of the, Islami Jamhuri Ittihad arid; had 'played an important role in destabilizing their Government. When the Pakistan People's Party.

came into power in November, 1993,. the Prime Minister pf Pakistan .issued,,a . directive that, disciplinary and criminal proceedings be initiated against the,.petitioner, inter alia; for misuse of secret funds and abuse'pf powers to consolidate the previous Government. Accordingly a Special Enquiry Team headed by the respondent, Additional Director-General, F.I.A., Mr. Masood Sharif, was set up whicfi Team after holding a full-fledge

Embezzlement of huge sums of money through bogus entries of Purchase Orders for Furniture and other items of office equipment; ,

(ii) misuse of secret service Zakat and Baitul-Maal Funds to serve the political interest of the former Prime Minister Mr. Nawaz Sharif;

(iii) accepting Rs.6 lacs every month from Mr. Shahbaz Sharif in return for providing him information about: secret meetings of the Opposition Political Parties from time to time. Allegations are also included regarding the petitioner having tapped the Telephones of political personalities and leaders." . '

The petitioner feared that he would be involved in all kinds of criminal cases; as a first step his name had been brought on the Exit Control List and he had also been placed under round-the-clock surveillance. These stamps, it was the petitioner's case, were violative of his Fundamental Right of liberty. His case also was that under the instructions dated 9-3-1975 issued under the F.I.A. Act, 1975, the power to order the registration of a case vests in the competent authority namely the Anti-Corruption Council but the competent authority had in his. case been ignored and the order had been obtained from the Prime Minister directly "who has no lawful authority to issue any such order". The petitioner had thus been denied the opportunity to show cause against the registration of criminal cases and this was in violation of para. 6(a) of the said Instructions. The criminal proceedings against the petitioner, so went the allegations, were mala fides. He, therefore, sought the followiftg declarations and directions:-

(i) On all charges relating to financial irregularities/corruption, the respondents are under a legal duty to initiate criminal proceedings in accordance with Instructions dated 5-3-1975 which halve the force of law.

, (ii) Respondent Government is under a legal duty to exclude from consideration any Orders issued by the Prime Minister of Pakistan relating to registration of criminal case/cases against

the petitioner. It

. is the Anti-Corruption Council which alone is. the competent authority , for the purpose'of,the Special Statute in question.' ,.v

.(iii) In a situation where a decision was taken not to register a criminal case ' straightaway but to hold an enquiry, the Respondent Agency was under " a legal duty to obtain an explanation from me./petitioner before taking any concrete* step in investigation such as; sest / add to place all the relevant material before the competent authority to enable it to arrive at

a conclusioh after independent application!of mihd.as to whether .or not to initiate criminal proceedings. ! f

(ivj In the jpeculiar facts of the instant case and- in particular the decision. , already made by the Prime Minister to register a.criminal case against . the petitioner, the only adequate relief availably to him rioy/ is for the , respondent Government to place all incriminating material:,before the High Court jp , enable it to ,exercise judiqial review to. ensure that criminal proceedings are not being initiated for reasons and? purposes : extraneous to Statute.

.1 .

(y,)„ Initiation, of all . criminal proceedings against . the petitioner is, : ascribable to mala fides on -the part, of prominent leaders of the ... , Political Party which is currently . in; /control of, the . Federal: "Government. ,,,.-/

(vi) The .Special Investigation Team headed by., respondent Masoqd Sharif

! had no lawful authority to .conduct any inveistigation/enqniiy directly on

, the'Orders of the Prime Minister and to,.submit Report, directly

. to her in contravention of the established, provision. The.petitioner

- has been treated with - discrimination/ prohibited- by the

Constitution.

,\ (vii) Placement of-the petitioner on the Exit Control List js an, act without . lawful authority. ,i r

(v-iii) Fundamental Right of the petitioner to freedom of movement has been violated¹ in the'manner in which he has t;jvirjA3lfy -;hipl4;;a':ffiso)n> y/ against his volition:

(ix) There is no lawful authority for the manner in which all his telephones - are being monitored and his private conversations tapped either by the respondent Agency or by some other functionaries acting, at the behest' of the respondent Government. ' i : 1

"DIRECTIONS: ' '

(i) ..Respondent Government be. directed to exclude froin.consideration the ' Orders , r issued by the . Prime Minister of Pakistan.'to initiate criminal proceedings against the . petitioner. These are contrary to law. .

(ii) Respondent Government be directed to exclude from consideration all findings/conclusions/reports prepared by respondent Masood Sharif in relation ' to the petitioner on the charges as reported in

. Media.

(iii) In the peculiar circumstances of this case where Prime Minister has already indicated her mind and resolve at a previous stage, respondent Government be restrained from registering any criminal case against the petitioner unless High Court has had an opportunity to exercise its Constitutional jurisdiction- to conduct a judicial review of any decision taken in accordance with the prescribed procedure to ensure that it has not been taken for reasons and purposes extraneous to the Statute. ;

(iv) In any case, respondent Government be restrained from withholding or . abridging the opportunity available to other similarly situated' public servants from the petitioner to approach and seek relief from ordinary Courts of Law including pre-arrest bail. Copies of all F.I.Rs. registered against the petitioner be made available to enable him to seek such . relief.

'
”

(v) Respondent Government be directed to delete the name of the petitioner from the Exit Control List. , i

(vi) Respondent Government be directed to forthwith terminate the surveillance placed on the petitioner.

(vii) Respondent Government be directed to stop tapping all relevant telephones of the petitioner and destroy the record of all private conversations obtained through such monitoring.

(viii) Any other relief deemed appropriate to the peculiar facts of this case be , also afforded to the petitioner." 1 , . s

3, Before the learned Judge in Chambers, an Assistant Director, F.I.A., appeared and stated that a case under sections 201, 409, 408, 471 and 109, P.P.C. read with section 5 of the Prevention of Corruption Act II of 1947 had been registered against the petitioner on 16-3-1994, the allegations being that he had misused, and misappropriated as much as Rs.22 millions from the Secret Service Fund and had destroyed the incriminating evidence Against him. The Assistant Director stated further that one Col. Ikram Ullah had already been arrested,

4. The main attack of learned counsel for the petitioner before the learned Judge in Chambers was to the validity of the registration of the criminal case and the basis of that attack ;were the "Instructions Regarding investigation of cases of bribery and corruption by the Federal Investigating Agency".

(The Instructions). It was contended, that after the F.I.A. had held a preliminary enquiry into the allegations of bribery and corruption, it 'was required under paragraphs 4 and 7 of the Instructions ' to ' obtain the explanation of the" petitioner and then refer the matter to the competent authority namely the Anti-Corruption Council for its concurrence to the registration of the case and that course .,had'.not been; followed and the case had,-been , registered, on the order of the prime Minister. On being asked E.by the learned Judge, in Chambers,, ,the - Assistant Director, F.I.A.,

: who was present in- the Court. stated that there ; was no order on the file for. the registration, of, the case against, the petitioner, and that the case had been registered on. the complaint received > from the Intelligence Bureau! The learned Deputy Attorney-General who appeared for the respondents was of the view that the Instructions had no statutory force and in any case they applied to serving officers. The learned Judge in Chambers agreed with the learned Deputy Attorney-General that the Instructions were "intended to apply only to the Officer who was in actual service and not to those who are no more in service even'-though the enquiry on the proceedings initiated are relatable' to the acts, committed by them AVhen in service": This view, also held the. learned Judge in ' Chambers, was "further reinforced by the proviso to para. 4 which states that the .

; reference to the competent authority shall not be necessary in the- case of those. Government servants who are not governed by section 197, Cr.P.C." That view . received support from "Hamed Ghulam Sadiq v. Pakistan. and others " (PLD 1960 SC (Pak.) 351) and "Kashavlal Mohanlal Shah v. State of BOMBAY" , (AIR .1961 SC 1395)". : J, '

5. V As to the allegation that the petitioner's telephones were being regularly tapped, the Assistant Director, F.I.A., .so,observed the learned Judge in Chambers, "vehemently controverted this allegation'and stated categorically that F.I.A. has not tapped the petitioner's telephones: "The allegation-having been denied", so: held the learned Judge in Chambers,' "cannot be gone into in these

! proceedings"; In the view of the learned Judge in Chamber, therefore, the. writ petition had no merit. V

‘ ‘ . ’ - ‘ - \ ’

6. Before the learned Judges who heard the Intra-Court Appeal; the main grievance of the petitioner's counsel was that "that learned Single Judge despite noting in the judgment'the declaration sought and directions prayed for in the writ petition failed to: deal with the same except the question of applicability of Instructions dated 5-3-1975 regarding investigation of cases of bribery and corruption by the Federal Investigating Agency (Annexure III to the; writ petition). "Another grievance made was that the learned Judge in Chamber had said nothing "about the tapping of phones by the other agencies (that is agencies other: than the Federal - Investigating Agency)". Before the learned Judges, the" learned Advocate-General and the learned Deputy .Attorney-General .stated "that the Prime Minister has neither passed any order nor issued any direction to any agency to involve the appellant in criminal cases nor any agency of the Federal Government is tapping the phones of, the appellant nor there is any order passed regarding surveillance of the appellant and as such , the right of freedom of movement of the appellant has not been infringed except to -the extent that he is wanted in case F.I.R. No. 4 registered with F.I.A/S.I.U., Islamabad and another case registered vide F.I.R.

dated 2-3-1994 for offences under sections 382/452/506 and 109, P.P.C. with police of Police Station Aabpara, Islamabad. They further stated that except for aforementioned two criminal cases no other criminal case has been registered against the appellant". ,

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7. Regarding "the placement of appellant's name on the exit control list", the fact was confirmed but it was stated that "the appellant can move for review under section 3 of the Exit from Pakistan Control (Ordinance),. 1981 and such a review/representation, if made, will be dealt with in accordance with law". The learned Law Officer also stated that the inclusion of the name of the

appellant in that list was prima facie justified "as case of embezzlement of colossal amount stands registered against him". The learned Advocate-General also informed the learned Judges "that the accusation which are the basis of the F.I.R. registered with F.I. A. would be furnished to the appellant so as to provide him opportunity to explain his position to the said accusation and that this opportunity is being granted without conceding any such right being claimed under the instructions dated 5-3-1975" .

8. In view of these statements and assertions, the learned Judges did not deem it necessary to deal "with the declarations and the directions sought respecting the placement of the appellant on the exit control list. The plea regarding tapping of phones; alleged direction/order of the Prime Minister to initiate criminal proceedings against the appellant and to exclude from consideration the alleged report prepared by Mr.

Masood Sharif regarding embezzlement/defalcation in relation to the appellant as it was stated that no such report has been prepared by Mr.

Masood Sharif and his placement under surveillance need not be dilated upon as all these have categorically been denied/controverted by the learned Law Officers".

9. Dealing with the question whether the Instructions dated 5-3-1975 applies to the petitioner and whether the petitioner can claim that the accusation contained in F.I.R. No. 4 can only be scrutinized by a Parliamentary Committee and cannot be subject-matter of the inquiry under the ordinary criminal law, the learned Judges found that the view taken by the learned Judge in Chambers was supportable on the authority of the precedent cases "Ataur Rahman v. The State" (PLD 1967 Supreme; Court 23) and "Keshavlal Mohanlal Shah v. State of Bombay" (AIR 1961 Supreme Court 1395). They went on to observe that the petitioner's counsel "has not followed the line of arguments advanced before the learned Single Judge" and what he argued was that "Instructions provide salutary rule of principle of natural justice of allowing opportunity of hearing and explanation to the accusation. Such an opportunity cannot be denied to the appellant merely for the reason that lie stands retired from Government service or is * rio more holder of the public office". This argument, so held , the learned Judges, was "totally devoid of any force". If "this plea on its face value is accepted then no criminal case can be registered against any one without calling the explanation in advance". Learned counsel' for : the petitioner' then relied upon the observations contained in' para. 30 of this Court's judgment in! "Khawaja-Ahniad Tariq ;Rahim v. The Federation of Pakistan" (PLD 1992 Supreme Court 646). These observations, so. held the learned Judges, were made with respect to- utilisation of secret funds the Prime Minister/Ministers and .it was .observed that action ' for misuse or defecation of' such hinds should be before a Committee specially, constituted, by Parliament for this purpose, or/before a Tribunal constituted for this specific purpose by law,; whose proceedings are held in the. strictest secrecy. The Prime .Minister or any , Minister utilising such funds is Sound by his or her oath pf secrecy not , tp divulge the" nature or. its use or appropriation, If .

the uses were, disclosed, .it could lead to disaster and whether they were true or false,, how they could be verified". In the view of the leanied Judges the!above, referred to observations of this Court; did not apply to an Officer qf. Intelligence Bureau, "as according to their own Code, they are supposed to maintain proper record and accounts of the funds utilised. These accounts are to be audited periodically while the utilisation

- of funds by the Prime Minister or Minister are to be dealt with under separate instructions"., It was for the maintenance of secrecy regarding the utilisation of these funds that "details of the .defalcation of funds was not"given in the F.I.R;"

. and "after enquiry if the prosecution comes to the conclusion that a case worth trial is made out then request to hold the proceedings in camera can be made". The learned Judges were not prepared to accept the plea that "utilisation of funds by . the officers pf Intelligence " Bureau amounts to an act of State and that act of State cannot; be subjected , to . municipal law". In the present dispensation-, accountability, of public.

;servants, so observed the, learned Judges, "cannot be, made beyond the, reach . of law specially in view of the judgment in: ' the case of "Federation of Pakistan v. Zafar Awan, Advocate High Court" (PLD 1992 Supreme Court 72)".

, ,10s [The learned Judges were, therefore; of the view that the petitioner should avail himself of the opportunity, of furnishing explanation before the' Federal Investigating Agency. They had no doubt in their mind that "the officers of the F.I.A. will.abide by the undertaking given by the learned Advocate-1 General on their behalf iri letter and spirit „ -

11. We have thought'it necessary to notice the points raised before the, learned Judge ;in Chamber and the learned appellate Judges and the treatment that was accorded to them at some length, for one of the arguments before us was that the points raised in the writ petition Were important questions of law but they were not properly disposed of.. We have seen that although the writ petition was a lengthy document, yet the only point learned counsel for the petitioner thought it worth his While to raise before the learned Judge iii Chamber was the applicability of the Instructions arid the effect of their non- compliance. The judgment of the .learned judge shtyws that point received a detailed consideration. Similarly, the leaMed appellate Judges noted all the points canvassed before them and gave them such consideration as they deserved. The judgments of the learned Judges in the High Court cannot, therefore be faulted on that score.

,12. The power under Article i.99 of the Constitution is the power of judicial review. That power "is a great weapon in the hands of Judges, but the Judges iriust observe the Constitutional lihiits set by our parliamentary system on their exercise of this beneficial grower, namely, the separation Of powers between the Parliaitierii, the Executive and thfe Courts". (Lord Scarman in Nottinghamshire C.C. v. Secretary of State (1986) (All ER 199, 204). Judicial review must, therefore, remain strictly judicial and in its exercise', Judges must take care not to intrude upon the domain of the other branches of Government. As was succinctly put by Hamoodur Rahman, J. (as he then was) in Mir Abdul Baqi Balurii v.

The Government of Pakistan (PLD 1968 SC 313, 324), under a Constitutional system which provides for judicial review of executive actions:- .

"It is, ih ttiiy opihiOii, a fallacy to think that such a judicial review must be in the nature of an appeal against the decision of the executive authority. It is riot the purpose of judicial authority reviewing executive actions to sit on appeal over the executive or to substitute the discretion .

of the Court for that of the administrative agency."

13. Tliis, we should think, is trite law. Viewed in this light, the judgments of the learned Judges in the High Court appear to us to be instances of that judicial restraint which is so essential "to the continuance of rule of law", "for the continued public confidence in the political impartiality of the judiciary" and the voluntary respect for the law as laid down and applied by the Courts. (See Duport Steels Ltd. v. Sirs (1980) 1 All ER 529).

14. The starting point of the examination of the legal questions canvassed by thd petitioner's

counsel must be the important fact that the stage at which the petitioner thought it proper to invoke the High Court's jurisdiction under Article 199 of the Constitution Was the stage of registration of criminal, cases against him. The effect of the registration of a Case is to set in train an investigation by the police in accordance With law . As was said in "Norwesi Holst Ltd. v. Department of Trade and others (1978) 3 All ER 280 at 290):

"In every investigation there areby and large three different phases. First of all, the administrative phase; next, the., judicial phase;

, and, finally, the executive phase when the orders of the Court or the

Tribunal are, if necessary, executed or promulgated. Quite plain>

;fairness to the suspect 'demands that he should be given a chance of stating his case before, the.;final period:. theexecutio.'i... Equally t. fairness demands that the suspect shall lbe given,'# chance of putting his " ' side of the case before the judicial inquiry is overV ii, But on the other

""j ; '- side, and the other side;are entitled to fairness just as'the suspect is,

J 'fairness to the inquirer demands that .during the'administrative period'he should -be able to investigate without having at every stage, to inquire : from the suspect what his side, of the matter may. be. ,Of course it. may I ; ,;be5difficult-to.,fmd.out the particular .point at'whidi.the administrative " ..,ph,e"srt,jju3iaaaseuls.,:...,u

' ;To'quote a passage from Lord Reid's spn-m""Wiseifiatf.v;'Bomfcifiao'!(1971') ;"r'AC 297, at(30):-:

* --"Every,- public? .officer,.who?has. to,.decide whether-to prRsecue-idr -raise) .proceedings; oughtj.first-to decide whether, there isia prima -fapie; Case,

I , ri 'it«;but no «6ne supposes that thejusticersqUires .that.,hp. should' first seek; the ;>comments of-the. accusejd'-or theVdefendanton/the material, before,him; V\$vh** . So.there is nothing. iriherently;:,unjust in;reaching; such a;decision.in the { -.absence of the other party.

>/'» .15 .i There-vis, .then the question of. the. High Court's. jurisdiction J6 .interfere uin ese matters under Article 199.. of the; Constitutions. It: is TQ.BE-NOTED that the f-prelief that the petitioner-seekis, faE,under clause. (:1X subTjjlauseXa) and .(ii) of .5 ..Article, 1:99 of.therConstitutori.- The.jurisdie;tion ivhich. the. High Couit exercises 1 under sub'-clause (a) (ii)sof clause*(-.I;-)of; Articlfeyl99 of the .Constitution is the jurisdiction-to declare that "any act done or proceeding.' taken -jwithin the ;-,t6rit6rial jurisdiction' of - the Court'. 'by"a .

person' perfo'mirig ' frinctions. in connection with the affairs of the Federation, a: ihwirice j ;bben done.or taken'without'.rawaufhbrity'Snd/'is'.df no'legal, effect". This'was , ithfe 'rit- jurisdiction1' which'; was1 conferred:.'!uppri:the- High Courts in '-Pakistan' for.the first . time in '1054' '8y: scfiqn' -'Government

of India Act, 1935, which Act- thenrserved as tflfe Constitution ofPakistan. As wasvsaid by Kaikaus, J/In,Jamal Shah's case,(PLD1966 SC 1, p.50) a suit .askingfor a declaratiqnthat ;the. order in, question' is .without jurisdiction and as suchra nullity "is like proceedings uridfcr Article, 98-of, the .then/ Constitution, ;,in so . far as that Article:empowers the High Courts to declare an act or ,proceedingsfto . have;been done or taken without lawful.authority and to be of no legal, effect. .In ' . "Imperial Tobacco Ltd;,, and,'anbther. y;, Attorney-General".;(1981 AC .718,), the ' plaintiffs, tobaccq maiijufacturers,. started a "Spot £ash',' advertising scheme and inserted soine

260,000,000 "Spot Cash" cards into cigarette packets which were then sold at the same price as before the scheme started. After the scheme had ; feeen. started'the.

Director of Public Prosecutions who- Considered that the scheme ' was :-illegal, ,had; summonses issued by the Nottingham justices against the : plaintiffs-and four :of ;their directors'or managers alleging that in furtherance of : the,-scheme- they had distributed tickets- in an unlawful lottery contrary to section 2(1)-(b) of the Lotteries and Amusements Act, 1976.. The plaintiff brought an action, claiming a declaration that . the. scheme was lawful and did not contravene the provisions of: the Act of 1976 as being either a lottery- or .an unlawful competition. The learned trial Judge held that he had the jurisdiction to hear the summons but dismissed the claim for a declaration on the ground that the scheme, was both an unlawful lottery and unlawful competition. There was an: appeal and the Court of Appeal allowed it. On appeal to the House, of Lords the matter was considered from two angles- ,

(1) jurisdiction of the Civil Courts to grant such a declaration,.

and

(2) and if there was jurisdiction whether it was a case in which the discretion of the Court should have been exercised to make the declaration.

On the first question, Viscount Dilhorne held that the decision of the Court of Appeal-

"if it stands, will form a precedent for the Commercial Court and other Civil Courts usurping the functions of the Criminal Courts.... If in this case where the declaration sought was' not in respect of the future conduct but in respect of what had already taken place, it could properly be granted I see no reason why in such cases a declaration as'

to future conduct could not be granted..... The justification for the-

Court of appeal taking' this unusual and unprecedented course - no case was cited to us where a Civil Court had after the commencement of a prosecution, granted a declaration that no offence

had been committed was said to be the length of time it would have taken for the matter to be determined in the-Criminal Courts. I can well' see the advantages of person? being able to obtain rulings on whether or not certain conduct on which they propose to embark will be criminal and it may be a defect in our present system that it does not provide for that. Here, I wish to emphasise, it was not a question whether future conduct would be permissible but whether acts done were criminal. It was said that the administration of justice would belie its name if Civil Courts refused to answer reasonable questions on whether certain conduct was or was not lawful. I do not agree. I think that the administration of justice would become chaotic if, after the start of a prosecution, declarations of innocence could be obtained from a Civil Court." ,

16. On the question, for the exercise of judicial discretion, Lord Fraser said that "this is not a case in which the discretion of the Court, should have been exercised to make the declaration. By doing so the Civil Court, in my opinion, improperly intruded into the domain of the Criminal Court, notwithstanding that criminal proceedings had already been begun..." And Lord Lane had no doubt that "anyone is entitled to apply to the Court for a declaration as to their right unless' statutorily prohibited' expressly or by -necessary-

. implication; held that it would be strange if the defendant to a proper criminal proceedings were able to preempt those proceedings by application to a Judge ; of the High Court whether, sitting

in the Commercial Court or elsewhere

. , Where! however criminal proceedings have been properly instituted and are not

. vexatious or an abuse of the process of the Court it is not a proper exercise of

- the Court's discretion to grant to the defendant in those proceedings a declaration that the facts to be alleged by the prosecution do not in law prove the.

. . offence charged".

1 " , -17. ; A16ng the same lines has the law developed in this country. As recently ' 1 as January, 1994, this Court in "Malik Shaukat Ali Pogarai v. 12 Others v.

' Qhujam Qasim Khan Khakwani and others". (PLD 1994 SC 281) , had the occasion to deal with the " question of the "nature of the continued control:

. exercised by the Court over the investigation" in the light of two orders made by a learned Judge in the High Court during the pendency of a writ petition- The first order directed the Investigating Officer to finalize the investigation by " a certain date and in the second order which was made on 'the statement of the Investigating Officer that out of the 21 accused persons, only 'two: had been arrested and that .challan: was being submitted, the learned Judge observed that if "most of the accused have not : been arrested which is the use of submitting- the challan", that he was not satisfied with, the performance of the Anti-Corruption Department and .. directed notice to be issued, to ; the Additional Director of Anti- Corruption to appear and show cause. "as to why; adverse observation about his . , efficiency and .

performance should not be passed by this Court and. the same , should. be placed on his personal file", This Court thought it necessary to re- : . iterate the Privy Council's classic words of caution to the Courts in the matter of . interfering with the police, investigation in Qia waj a Nazir Ahmad case AIR 1945 . Privy Council 18 namely: ; ~

?s it is essential that every one accused of a crime should have free 'W access to a Court of justice so that he may be duly acquitted, if found

. [not guilty] of the offence with which he is charged., so it is of the utmost importance, that the judiciary should not interfere with the police in ' matter which are within their province and into which the law imposes v ' upon them the duty of enquiry.: There is a statutory right on the

' . ; part of the police to investigate the circumstances of an alleged

; . v* cognizable crime without enquiring any authority from the judicial authorities and it would, as their lordships think, be an unpardonable .

. result if it should be held possible to interfere with those statutory

. rights by an exercise of the inherent jurisdiction . of the Court. The

. . functions of the judiciary . and the, police are complementary not . . i . overlapping and the combination of . individual liberty with, a due observance of law and order, is only to be obtained by leaving each to

20. We have been taken through the two judgments of the learned Judges in the High Court and we find that all the points of law and facts- canvassed 'before the learned Judge's Were properly considered and disposed Of. 'As"was 'held in; Muhammad Abdu Miah case PLD 1959 SC (Pak.) 276, it is helpful to bear in mind that there is a presumption that official Sets have been regularly performed i.e. with due regard to the relevant formalities and Within the relevant powers and that a conclusion of excess and irregularity is, therefore, not to be lightly reached; The learned Judges Were entitled to proceed on that basis and When the learned Advocate-General, and the Deputy Attorney-General stated at the Bar that there had been no tapping of phones and the petitioner had not been placed 'under' surveillance, - it was within the discretion of the learned Judges to let the matter rest at that and not to embark upon a factual enquiry into the allegations.. In .

proceeding as they , did, the learned Judges -were in our view also, acting in accordance with rule 7 of "Rules for the issue of writs" which empowered the Court to direct that "such questions as it may consider necessary be decided, of such other evidence and in such manner as it may deem fit and, in that case it, may follow such, procedure and may pass such order, as, may, appear to it proper."

just; . >

21. The question of the impugned action being illegal; was also dealt with adequately by the learned appellate Judges, by whom it was held that, the reports containing the statement of the Prime Minister were all made before the assumption of the office of the Prime Minister and that the news report dated 25-1-1994 did not, emanate from any official source. The learned Judges were also in our opinion right in accepting the statement, of the Deputy Attorney-General and the Advocate-General that the Prime Minister, had not made any order "so as to involve the appellant in criminal cases". The matter, as regards the criminal proceedings against the petitioner, has not passed the administrative phase and the learned Judges in our opinion rightly dismissed the petitioner's claim that he had a right of hearing at that stage. The petitioner's reliance upon the observations in Mohtarma Benazir Bhutto case and ICHAWAJA -Ahmad Tariq Rahim case was also wholly misplaced. The observations in both those cases were made in the context of, and are authority for, their own facts. Khawaja Ahmad Tariq Rahim case concerned the dissolution of the National Assembly; and the observations had reference to one of the grounds which had influenced the President in making the order of the dissolution of the National Assembly : namely the use of the secret funds. In Mohtarma Benazir Bhutto case; the order in question had been by the Special Court in President Reference No. 11 of 1990, "allowing the claim of privilege preferred by the Director of Intelligence Bureau, Government of Pakistan in respect of certain documents whose production was sought for by the appellant during the trial of the proceedings". This Court accepted the appeal of Mohtarma Benazir Bhutto, set aside the order of the Special Court and directed the Special Court to reconsider the question in the light of the peculiar facts of that case. Rustam S.

Sidhwa, J. agreed with the final order proposed to be made by Shafiqur Rahman, J. who wrote the leading judgment but as there were a number of matters on which he wished to express himself, he wrote a separate note. In that note he observed that the Intelligence Bureau is a highly secret and sensitive agency whose activities and internal working require to be kept at the highest level of secrecy and confidentiality in the larger national interest and that its information and documents, apart from any question of public interest, by practice and procedure require to be maintained in the strictest confidence... ..But the rule, with

regard to privilege in criminal proceedings, so held the learned Judge, is "somewhat restricted

and limited as opposed to civil proceedings where it has a larger play". The view in such matters, the learned Judge went on to say, is that "if the documents are relevant to establish the commission of crime or fraud by the accused and are not made for legitimate purposes such as for the preparation of the defence of the accused which the interest of justice may require to be kept confidential, the documents would not be privileged". Shafiur Rahman, J. in considering the question whether the documents were privileged document referred to John Henry Wigmore's "The Anglo-American System of Evidence in Trials at Common Law" in which the learned author answered the question- j Whether there are any matter or fact, in the possession of officials, concerning solely the internal affairs of public business, civil or military, which ought to be privileged from disclosure when material to be ascertained upon, an issue in a j Court of Justice- with the following pertinent observations:

"Ordinarily, there are not. In any community under a system of representative Government and removable officials, there can be no facts which require to be kept secret with that solidity which defies even the inquiries of a Court of justice. 'To cover with the veil of secrecy', said Patrick Henry, 'the common routine of business, is an abomination in the eyes of every intelligent man and every friend to his country'. Such a secrecy can seldom be legitimately desired. It is generally desired for the purposes of partisan politics or personal self-interest. The responsibility of officials to explain and to justify their acts- is the chief safeguard against oppression and corruption. Whether it is the . . . relations of the Treasury to the Stock Exchange, or the dealings of the , Interior Department with Government lands, the facts must constitutionally be demandable, sooner or later, on the floor of Congress. To concede to them a sacrosanct secrecy in a Court of . justice is to attribute to them a character which for other purposes is

. never maintained, a character which appears to have, been ' advanced only when it happens to have served the interests of some individual to obstruct investigation into facts which might fix him with a : ' liability." ' : ,

We hold, therefore, that the observations relied Upon by the learned counsel for the petitioner in the above-cited precedent cases do not help Him; at all. On the contrary, we find that the trend of judicial authority as noticed in the Mohtarma Benazir Bhatti case is against any such immunity from accountability as is being claimed for the petitioner, particularly when the matter concerns the commission of a crime or fraud. It was held in the Mohtarma Benazir Bhatti case that the capacity of the petitioner as Director, Intelligence Bureau, was; that of head of the department.

We can find nothing in those observations, and no provision of law was cited, to justify the equivoication of the Director With the Prime Minister or the Minister. Also, we do not know of any law nor Warrant cited conferring immunity against criminal prosecution upon a public servant like the petitioner. We discountenance the contention that such an immunity exists. To hold otherwise would amount to this that the Director, 'Intelligence Bureau' is not only above the law, but law unto himself. He was the holder of a public office and the question that the Criminal Courts will be called upon to determine. if after due investigation, the petitioner is charged to stand his trial, Will be whether he had committed criminal breach of trust in his capacity, of Director. To the very unusual assertion that the petitioner is not an ordinary man. we shall be content to, retail, for the benefit of all concerned, the following observations of Wilby, C.J. in that historic case of *Willers v. Widdowson* (1969).

19, St. Tri 1406: "The law makes no difference between great and petty officers; thank God, they are all amenable to justice". Then, the question being of the misappropriation of public money and misuse of public power, it is not surprising that any question of violation of Article 13 of the Constitution is at issue.

21. For these reasons we do not think that any ground for leave to appeal is made out. The petition is dismissed. V - - V.

22,. Before we part with this case, it would be pertinent to mention that on the first date of hearing, an attempt was made by the Counsel for the petitioner to file in the Court objections in writing questioning the composition of this Court and appointment of the Chief Justice, which were returned as not properly filed on two grounds: Firstly that they were not filed in the office as is.

normally done and secondly that they were, irrelevant and frivolous having no nexus with subject-matter of petition under hearing. No further effort was made to re-agitate or press those objections during the hearing; nor were the objections re- filed in accordance with the rules. \ u/ v

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